

MAP65, Inc.

Terms of Service — Founding Research Partnership Program

Effective Date: January 1, 2026

Published by MAP65, Inc. These Terms govern all MAP65 platforms and services including the video management platform. The current version of these Terms is available at www.MAP65.com/terms.

These Terms of Service ("Terms") constitute a legally binding agreement between MAP65, Inc. ("MAP65," "we," "us," or "our") and the subscribing institution, named user, or individual (collectively, "Subscriber") accessing or using the MAP65 platform or services. By placing a purchase order, signing a quotation, accessing the MAP65 platform, or using any MAP65 service, Subscriber agrees to be bound by these Terms in their entirety. If Subscriber is accepting these Terms on behalf of an institution or employer, Subscriber represents that it has authority to bind that entity. If Subscriber does not agree to these Terms, it must not use the services.

1. Definitions

The following defined terms apply throughout these Terms:

"Services"	The MAP65 web-based video platform, annotated surgical video content, associated software tools, and any related services provided by MAP65 under a Subscription.
"Platform"	The MAP65 secure web application and associated infrastructure through which annotated video content and related tools are delivered.
"Content"	All video recordings, annotation data, metadata, teaching points, labels, overlays, documentation, and other materials made available to Subscriber through the Platform.
"MAP65 Library Content"	Content created, curated, or annotated by or on behalf of MAP65, including the shared robotic thoracic surgery video library, provided to all applicable tier subscribers.
"Subscriber-Submitted Content"	Video recordings, metadata, or other materials submitted by Subscriber or its Named Users to MAP65 for annotation or storage via the Platform.
"Annotation Data"	All labels, tags, structural annotations, procedural phase markers, risk pattern identifiers, and associated metadata generated by MAP65 in connection with any Content, whether MAP65 Library Content or Subscriber-Submitted Content.
"Named User"	A specific, identified individual authorized to access the Platform under a Subscription, up to the seat limit for the applicable tier.
"Subscription"	A time-limited, non-exclusive license to access and use the Services, purchased under a Quotation or Order Form, at the selected tier.
"Subscription Term"	The period beginning on the subscription start date and continuing for the minimum term (2 years) plus any renewal periods.
"Tier"	The service level selected by Subscriber: Tier 1 (Associate), Tier 2 (Partner), or Tier 3 (Founder), each with distinct features, pricing, and data rights as described in the applicable Quotation and these Terms.
"De-Identified"	Processed to remove or obscure all information that could reasonably be used to identify a patient, in compliance with 45 C.F.R. § 164.514 (HIPAA Expert Determination or Safe Harbor) or equivalent applicable standard.
"AI Model"	Any machine learning model, neural network, computer vision system, or related artificial intelligence system developed, trained, fine-tuned, or validated by MAP65, including the Second Surgeon intraoperative clinical decision support platform.

"Post-Clearance Product"	Any MAP65 product or service that has received marketing authorization from the U.S. Food and Drug Administration (FDA) or equivalent foreign regulatory authority.
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2. Subscription, Access, and Permitted Use

2.1 License Grant

Subject to payment of all applicable fees and compliance with these Terms, MAP65 grants Subscriber a limited, non-exclusive, non-transferable, non-sublicensable license during the Subscription Term to: (a) access and use the Platform for the number of Named Users permitted under the selected Tier; and (b) view, stream, and use MAP65 Library Content and (for Partner and Founder tiers) institution-specific Annotation Data returned by MAP65, in each case solely for the Permitted Purposes set forth in Section 2.2.

2.2 Permitted Purposes

Content may be used solely for the following purposes ("Permitted Purposes"):

- Surgical education, residency and fellowship training, and continuing medical education for Named Users;
- Preparation for, review of, and teaching related to robotic thoracic surgical procedures;
- Internal quality improvement and peer review activities conducted by Named Users at the subscribing institution;
- Non-commercial academic research, including participation in MAP65-led or MAP65-affiliated research collaborations as expressly authorized in writing by MAP65; and
- Evaluation of the Second Surgeon platform concept and provision of feedback to MAP65 as contemplated by the Partnership program.

2.3 Restrictions

Subscriber shall not, and shall ensure Named Users do not:

- Use the Content or Platform for any clinical, diagnostic, or treatment decision-making purpose during live surgical procedures, except where expressly authorized in writing by MAP65 and permitted by applicable regulatory clearance;
- Reproduce, copy, distribute, publish, transmit, display, sublicense, sell, or otherwise commercially exploit any Content or Annotation Data;
- Share, transfer, or make available access credentials or Content to any person who is not a Named User under the Subscription;
- Reverse engineer, decompile, disassemble, or attempt to derive source code or training data from any Platform component or AI Model;
- Remove, obscure, or alter any copyright notices, attribution statements, watermarks, or terms of service references embedded in Content;
- Use the Platform or Content in any manner that violates applicable law, including HIPAA, export control regulations, or applicable clinical data protection requirements;
- Use any automated tools, bots, scrapers, or scripts to access or extract Content from the Platform; or
- Use the Services to develop, train, or improve any AI model or commercial product that competes with any MAP65 product or service.

3. Data Rights, Intellectual Property, and License-Back

3.1 MAP65 Ownership of Content

All MAP65 Library Content, Annotation Data generated by MAP65, Platform software, and associated intellectual property are and remain the exclusive property of MAP65, Inc. These Terms do not transfer any ownership interest to Subscriber. MAP65 reserves all rights not expressly granted.

3.2 Subscriber-Submitted Content — Ownership

Subscriber retains ownership of Subscriber-Submitted Content (e.g., operative video recordings submitted for institution-specific annotation). However, by submitting any content to MAP65 for annotation or processing, Subscriber grants MAP65 the rights described in Sections 3.3 and 3.4.

3.3 License-Back: Annotation and AI Training Rights

By submitting Subscriber-Submitted Content to MAP65 (whether for institution-specific annotation under Tier 2 or Tier 3 or otherwise), Subscriber grants MAP65, Inc. a perpetual, irrevocable, worldwide, royalty-free, sublicensable license to: (a) access, process, annotate, and create derivative works of Subscriber-Submitted Content for the purpose of generating Annotation Data; (b) use De-Identified Subscriber-Submitted Content and all associated Annotation Data to train, develop, fine-tune, validate, and improve any MAP65 AI Model, including the Second Surgeon platform; (c) incorporate De-Identified Subscriber-Submitted Content and Annotation Data into the MAP65 shared video library for access by other Subscribers, subject to the tier-access controls and de-identification requirements described herein; and (d) use De-Identified Subscriber-Submitted Content and Annotation Data in academic publications, conference presentations, regulatory submissions (including FDA 510(k) and De Novo submissions), and investor materials, provided that no Subscriber-Submitted Content is disclosed in a form that would identify any individual patient or the submitting institution without prior written consent.

3.4 Condition: De-Identification

The license in Section 3.3 is conditioned on MAP65's obligation to De-Identify all Subscriber-Submitted Content prior to any use beyond delivery of annotated content back to Subscriber. MAP65 will not use identifiable patient data for AI training, library inclusion, or any purpose other than completing the annotation service for which it was submitted. Subscriber represents and warrants that all Subscriber-Submitted Content submitted to MAP65 has been De-Identified by Subscriber prior to upload, in compliance with HIPAA and applicable law. MAP65 does not accept identifiable patient data.

3.5 MAP65 Library Content — Use in Shared Library

MAP65 Library Content created by MAP65 (not Subscriber-Submitted Content) may be made available to all Subscribers at the applicable access tier without restriction or compensation to Subscriber.

3.6 Annotation Data Generated from Subscriber-Submitted Content

Annotation Data generated by MAP65 in connection with Subscriber-Submitted Content is jointly useful to both parties. MAP65 grants Subscriber a perpetual, non-exclusive, royalty-free license to use Annotation Data returned via the Platform for Permitted Purposes. MAP65 retains full rights to all Annotation Data as set forth in Section 3.3.

3.7 Feedback

Any feedback, suggestions, product input, or ideas provided by Subscriber or Named Users to MAP65 regarding the Platform, Content, or any MAP65 product or service ("Feedback") may be used by MAP65 for any purpose without obligation or compensation to Subscriber. Subscriber assigns to MAP65 all rights in any Feedback.

3.8 Institutional Data Use Agreements

Institutional Subscribers whose policies require a separate institutional Data Use Agreement (DUA) for data sharing should contact Partners@MAP65.com before submitting Subscriber-Submitted Content. A DUA does not supersede these Terms but may supplement Section 3.3 with additional institutional-specific conditions, co-authorship rights, and data governance provisions. Where a DUA and these Terms conflict, the DUA governs with respect to data rights only; these Terms govern all other matters.

4. Disclaimer of Warranties

THE SERVICES, PLATFORM, AND ALL CONTENT (INCLUDING ALL MAP65 LIBRARY CONTENT, ANNOTATION DATA, AND SUBSCRIBER-SUBMITTED CONTENT RETURNED WITH ANNOTATIONS) ARE PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTY OF ANY KIND, EXPRESS OR IMPLIED. MAP65 EXPRESSLY DISCLAIMS ALL WARRANTIES, INCLUDING BUT NOT LIMITED TO: (a) ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT; (b) ANY WARRANTY THAT THE CONTENT IS ACCURATE, COMPLETE, CURRENT, ERROR-FREE, OR CLINICALLY VALIDATED; (c) ANY WARRANTY THAT ANNOTATION DATA REFLECTS THE CORRECT IDENTIFICATION OF ANATOMICAL STRUCTURES, PROCEDURAL PHASES, OR RISK PATTERNS IN ANY GIVEN SURGICAL VIDEO; (d) ANY WARRANTY THAT THE PLATFORM WILL BE UNINTERRUPTED, SECURE, OR FREE FROM ERRORS OR

DEFECTS; AND (e) ANY WARRANTY AS TO THE FITNESS OF THE CONTENT OR SERVICES FOR ANY CLINICAL, DIAGNOSTIC, OR REGULATORY PURPOSE.

4.1 Not a Medical Device (Pre-Clearance)

The Services and Content provided under this Agreement are pre-commercial research and educational tools only. They are not FDA-cleared medical devices and are not intended, designed, or validated for use in clinical decision-making during live surgical procedures. No annotation, label, overlay, or AI-generated output available through the Platform should be relied upon for intraoperative clinical decision-making. The operating surgeon retains sole professional responsibility for all surgical decisions.

4.2 Educational Use Only

Content is provided exclusively for surgical education, training, and research as described in Section 2.2. MAP65 makes no representation that the techniques, approaches, or anatomical depictions shown in any Content represent the standard of care, are appropriate for any particular patient or clinical situation, or have been validated in controlled clinical studies.

4.3 No Endorsement

Inclusion of any institution, surgeon, or procedure in MAP65 Content does not constitute endorsement by MAP65 of that institution's, surgeon's, or procedure's quality, safety, or outcomes.

5. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW:

- IN NO EVENT SHALL MAP65 BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, LOSS OF DATA, LOSS OF GOODWILL, BUSINESS INTERRUPTION, OR COST OF SUBSTITUTE SERVICES, HOWEVER CAUSED AND UNDER ANY THEORY OF LIABILITY, EVEN IF MAP65 HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.
- MAP65'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATING TO THESE TERMS OR THE SERVICES, UNDER ANY CAUSE OF ACTION, SHALL NOT EXCEED THE TOTAL FEES PAID BY SUBSCRIBER TO MAP65 IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.
- THE FOREGOING LIMITATIONS APPLY REGARDLESS OF THE FORM OF ACTION, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, OR OTHERWISE, AND SHALL SURVIVE FAILURE OF AN EXCLUSIVE REMEDY.

Some jurisdictions do not permit the exclusion or limitation of certain implied warranties or consequential damages. In such jurisdictions, the above exclusions and limitations apply to the maximum extent permitted by applicable law.

6. Indemnification

Subscriber shall defend, indemnify, and hold harmless MAP65, its officers, directors, employees, contractors, and licensors from and against any claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from or relating to:

- Subscriber's or any Named User's use of the Services or Content in violation of these Terms;
- Subscriber's breach of any representation or warranty in these Terms, including the representation that Subscriber-Submitted Content has been De-Identified;
- Any clinical or surgical decision made by any Named User, whether or not such decision was informed by Content accessed through the Platform;
- Any failure by Subscriber to obtain required institutional approvals, IRB authorization, patient consent, or other authorization required for submission of Subscriber-Submitted Content; or
- Any third-party claim that Subscriber-Submitted Content infringes any third party's intellectual property, privacy, or other rights.

7. Privacy, HIPAA, and Data Security

7.1 No PHI Accepted

MAP65 does not accept Protected Health Information (PHI) as defined under HIPAA (45 C.F.R. § 160.103). All Subscriber-Submitted Content must be De-Identified by Subscriber prior to upload. Subscriber is solely responsible for De-Identification and for compliance with HIPAA and all applicable data protection laws with respect to Subscriber-Submitted Content.

7.2 Platform User Data

MAP65 collects and processes account information and platform usage data (login events, playback session records, search queries) for Named Users to operate and improve the Platform. This data is processed in accordance with MAP65's Privacy Policy (www.MAP65.com/privacy). MAP65 does not sell user data to third parties. Playback session logs may be used in aggregated, de-identified form for analytics and investor reporting.

7.3 Business Associate Agreement

If Subscriber's institution determines that a Business Associate Agreement (BAA) is required for use of the Platform, Subscriber should contact Partners@MAP65.com before initiating a Subscription. MAP65 will execute a BAA with Covered Entities where required; however, a BAA does not modify Subscriber's obligation to De-Identify content before submission.

7.4 Security

MAP65 implements reasonable technical and organizational security measures designed to protect the Platform and its data against unauthorized access, including encryption in transit (TLS 1.2+), encryption at rest (AES-256), role-based access controls, and multi-factor authentication for administrative accounts. MAP65 does not represent that the Platform is free from all security vulnerabilities. Subscriber is responsible for maintaining the confidentiality of Named User credentials.

8. Co-Authorship and Publications

Partner (Tier 2) and Founder (Tier 3) Subscribers who contribute Subscriber-Submitted Content under a Data Use Agreement are eligible to be acknowledged as co-authors on MAP65-initiated peer-reviewed publications that substantially use such Subscriber-Submitted Content or derived Annotation Data, subject to satisfaction of applicable authorship criteria (e.g., ICMJE criteria). Co-authorship is not automatic or guaranteed, is not available to Associate (Tier 1) Subscribers, and is contingent on: (a) execution of a valid DUA, (b) meaningful data contribution and intellectual engagement with the research, and (c) MAP65's determination in good faith that authorship criteria are satisfied. MAP65 retains the right to publish research incorporating de-identified Annotation Data without Subscriber consent or co-authorship where no DUA is in effect.

9. Post-FDA Clearance Discount

Subscribers in good standing (all fees paid, no material breach) at the time of FDA clearance of the Second Surgeon platform are entitled to the post-clearance discount at the percentage corresponding to their Subscription tier at the time of signing (Tier 1: 25%; Tier 2: 40%; Tier 3: 50%), applied on a per-robot, per-case basis to MAP65's then-current list pricing for the Post-Clearance Product. This discount applies to the first commercial subscription contract executed by Subscriber for the Post-Clearance Product and is not transferable, not cumulative with other discounts, and not redeemable for cash. MAP65 makes no representation regarding the timing of FDA clearance or that clearance will be obtained. The discount right terminates if Subscriber's Founding Research Partnership Subscription lapses or is terminated for cause prior to FDA clearance.

10. Term, Renewal, and Termination

10.1 Term

The Subscription Term commences on the subscription start date specified in the applicable Quotation and continues for a minimum of two (2) years. Following the initial term, the Subscription renews automatically for successive one-year periods unless either party provides written notice of non-renewal at least sixty (60) days before the end of the then-current term.

10.2 Termination for Cause

Either party may terminate the Subscription immediately upon written notice if the other party materially breaches these Terms and fails to cure such breach within thirty (30) days after receiving written notice specifying the breach in reasonable detail. MAP65 may additionally suspend or terminate Platform access immediately, without cure period, if Subscriber: (a) submits content containing PHI; (b) distributes or commercially exploits Content in violation of Section 2.3; or (c) uses the Platform or Content in a manner posing a risk of patient harm.

10.3 Effect of Termination

Upon termination or expiration: (a) all Subscription rights and Platform access terminate immediately; (b) Subscriber's license to view and use Content ceases; (c) MAP65 retains all rights in Annotation Data and De-Identified Subscriber-Submitted Content as set forth in Section 3.3; (d) no refund of prepaid annual fees will be issued unless termination is by Subscriber for MAP65's uncured material breach; and (e) accrued payment obligations survive termination.

11. General Provisions

11.1 Governing Law and Dispute Resolution

These Terms are governed by the laws of the State of Delaware, without regard to conflicts of law principles. Any dispute arising out of or relating to these Terms or the Services that cannot be resolved by good-faith negotiation within 30 days shall be submitted to binding arbitration administered by the American Arbitration Association (AAA) under its Commercial Arbitration Rules. The seat of arbitration shall be Wilmington, Delaware. The arbitrator's award shall be final and may be entered as a judgment in any court of competent jurisdiction. Notwithstanding the foregoing, either party may seek injunctive or other equitable relief in any court of competent jurisdiction to protect intellectual property rights or prevent irreparable harm pending arbitration.

11.2 Entire Agreement

These Terms, together with the applicable Quotation or Order Form and any executed DUA, constitute the entire agreement between the parties regarding the subject matter herein and supersede all prior negotiations, representations, or agreements, oral or written. No terms in any Subscriber-issued purchase order or similar document shall modify or supplement these Terms unless separately agreed in a signed writing by an authorized MAP65 officer.

11.3 Modifications

MAP65 may modify these Terms at any time by posting updated Terms at www.MAP65.com/terms. MAP65 will provide at least thirty (30) days' notice of material changes via email to the Billing Contact and via in-platform notification. Continued use of the Services after the effective date of any modification constitutes acceptance. If Subscriber objects to a material modification, Subscriber may terminate the Subscription at the end of the then-current annual period without penalty.

11.4 Assignment

Subscriber may not assign these Terms or any rights hereunder without MAP65's prior written consent. MAP65 may assign these Terms in connection with a merger, acquisition, corporate reorganization, or sale of all or substantially all of its assets, provided the assignee assumes all obligations herein.

11.5 Severability

If any provision of these Terms is found invalid or unenforceable, that provision will be modified to the minimum extent necessary to make it enforceable, and the remaining provisions will continue in full force.

11.6 Waiver

No failure or delay by either party in exercising any right under these Terms constitutes a waiver of that right. Waivers must be in writing to be effective.

11.7 Force Majeure

MAP65 will not be liable for any delay or failure in performance resulting from causes beyond its reasonable control, including acts of God, government actions, pandemic, natural disaster, or third-party infrastructure failure. MAP65 will use commercially reasonable efforts to resume service as soon as practicable.

11.8 Notices

Notices to MAP65 under these Terms shall be sent to: MAP65, Inc., [Address], Attn: Legal, with a copy by email to Partners@MAP65.com. Notices to Subscriber shall be sent to the Billing Contact email on file. Notices are effective upon confirmed delivery.

11.9 Relationship of the Parties

The parties are independent contractors. These Terms do not create a partnership, joint venture, employment, or agency relationship. Neither party has authority to bind the other.

11.10 Export Compliance

Subscriber agrees to comply with all applicable U.S. export control laws and regulations. Subscriber will not access or use the Platform or Content from any jurisdiction subject to U.S. comprehensive sanctions without prior written authorization from MAP65.

Contact

For questions about these Terms, data use, DUA requests, or business associate agreements:

General Inquiries	Partners@MAP65.com
Legal / Compliance	Legal@MAP65.com (or Partners@MAP65.com , attn: Legal)
Data / DUA Requests	Partners@MAP65.com , attn: Data Governance
Website	www.MAP65.com
Terms URL	www.MAP65.com/terms
Privacy Policy URL	www.MAP65.com/privacy